

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Purchased:

ANSON NEWTON,

Plaintiff,

-against-

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

THE CITY OF NEW YORK, P.O. ADRIAN MENDES, Shield
No. 28829, Individually and in his Official Capacity, P.O. JOHN
DENNIS, Shield No. 16919, Individually and in his Official
Capacity, and P.O.'s "JOHN DOE" #1-10, Individually and in
their Official Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

The basis of venue is:
Incident Occurrence

Defendants.

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 25, 2014

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. ADRIAN MENDES
Shield No. 28829
67th Precinct
2820 Synder Ave.
Brooklyn, NY 11226

P.O. JOHN DENNIS
Shield No. 16919
NYPD Brooklyn Court Part
210 Joralemon St.
Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

ANSON NEWTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE
OFFICER ADRIAN MENDES, Shield No. 28829,
Individually and in his Official Capacity,
POLICE OFFICER JOHN DENNIS, Shield No.
16919, Individually and in his Official Capacity,
and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name
John Dow being fictitious, as the true names are
presently unknown).

Defendants.

-----X

Plaintiff ANSON NEWTON, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows that:

FACTS

1. Plaintiff ANSON NEWTON is an African American male and has been at all
relevant times residents of Kings County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department, a duly authorized public authority and/or police department, authorized to perform
all functions of a police department as per the applicable sections of the New York State
Criminal Procedure Law, acting under the direction and supervision of the aforementioned
municipal corporation, The City of New York.

4. At all times hereinafter mentioned P.O. ADRIAN MENDES and P.O. JOHN DENNIS were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about April 4, 2013 in the County of Kings, City, and State of New York, the plaintiff, ANSON NEWTON, was lawfully present in front of the apartment where he lived, in the hallway of his apartment building, located in the vicinity of 155 Linden Boulevard, Brooklyn, NY.

9. At the aforesaid time and place, defendants approached plaintiff and asked him for identification.

10. Plaintiff showed defendants his identification and then opened the door to his apartment to show the defendants that he lived there.

11. When plaintiff opened the door to his apartment, the defendants unlawfully entered his home without a warrant.

12. Defendants then placed plaintiff under arrest and handcuffed plaintiff with his arms tightly behind his back, causing bruising and numbness to his wrists and hands.

13. Plaintiff was transported to a nearby precinct and charged with Consumption of Alcohol in Public and Resisting Arrest.

14. At no time on April 4, 2013 did the plaintiff consume alcohol in public, resist arrest, or behave unlawfully in any way.

15. At no time on April 4, 2013, did defendants possess probable cause to arrest the plaintiff.

16. At no time on April 4, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest the plaintiff.

17. Thereafter, the plaintiff was transported to a nearby police precinct and later received treatment at Kings County Hospital Center for the injuries he sustained as a result of the defendants' excessive force.

18. In connection with the plaintiff's indictment, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office – namely, the police falsely informed prosecutors that the plaintiff was in possession of an open container of alcohol in a public place and that the plaintiff flailed his arms and held his arms against his body to avoid being handcuffed.

19. Thereafter, defendants repeatedly gave false and misleading statements regarding the facts and circumstances of the plaintiff's arrest – namely, the police falsely stated that the plaintiff was in possession of an open container of alcohol in a public place and that the plaintiff flailed his arms and held his arms against his body to avoid being handcuffed.

20. As a result of his unlawful arrest, the plaintiff spent approximately twenty (20) hours in police custody and made one (1) court appearances before all charges against him were adjourned in contemplation of dismissal.

21. As a result of the foregoing, the plaintiff missed one (1) day of work, and as of the date of this filing, continues to have numbness in his hands from being handcuffed that effects his ability to work as a mechanic.

22. As a result of the foregoing, the plaintiff sustained, *inter alia*, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

24. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

25. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

28. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

30. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

31. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates, and realleges, each and every allegation contained in the proceeding paragraphs as if the same were more fully set forth at length herein.

33. Defendants created false evidence against the plaintiff.

34. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office – namely, the police falsely informed prosecutors

that the plaintiff refused to identify himself to police officers, that the plaintiff flailed his arms and kicked his legs to avoid being handcuffed, and that the plaintiff possessed marijuana.

35. Defendants misled the prosecutors by creating false evidence against the plaintiff and thereafter providing false statements throughout the criminal proceedings – namely, the police falsely stated that the plaintiff refused to identify himself to police officers, that the plaintiff flailed his arms and kicked his legs to avoid being handcuffed, and that the plaintiff possessed marijuana.

36. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

37. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

38. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

40. As a result of the foregoing, the plaintiff sustained, *inter alia*, severe bodily injuries including, but not limited to injuries to his head, face, limbs, eyes and body

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

43. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. utilizing excessive force in executing arrests.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

45. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

46. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

47. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

48. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

49. The acts complained of deprived the plaintiff of his right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. Not to have summary punishment imposed upon him; and
- d. To receive equal protection under the law.

PENDANT STATE CLAIMS

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in proceeding paragraphs with the same force and effect as if fully set forth herein.

51. On or about April 19, 2013, and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

52. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

53. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and a hearing took place on October 2, 2013.

54. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

55. Plaintiff has complied with all conditions precedent to maintaining the instant action.

56. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**SIXTH CLAIM FOR RELIEF FOR
ASSAULT**

57. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants' aforementioned actions placed the plaintiff in apprehension of imminent harmful and offensive bodily contact.

59. As a result of defendants' conduct, the plaintiff has suffered physical pain, severe physical injury and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SEVENTH CLAIM FOR RELIEF FOR
BATTERY**

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. Defendant police officers touched the plaintiff in a harmful and offensive manner.

62. Defendant police officers did so without privilege or consent from the plaintiff.

63. As a result of defendants' conduct, plaintiff has suffered physical pain, severe physical injury and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**EIGHT CLAIM FOR RELIEF FOR
FALSE ARREST**

64. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as is fully set forth herein.

65. Defendant police officers arrested the plaintiff in the absence of probable cause and without a warrant.

66. As a result of the aforesaid conduct by defendants, the plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

**NINTH CLAIM FOR RELIEF FOR
FALSE IMPRISONMENT**

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. As a result of the foregoing, the plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for their safety, he was humiliated and he was subjected to handcuffing, and other physical restraints.

69. Plaintiff was conscious of said confinement and did not consent to same.

70. The confinement of the plaintiff was without probable cause and was not otherwise privileged.

71. As a result of the aforementioned conduct, the plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**TENTH CLAIM FOR RELIEF FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

72. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

74. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

75. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

76. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to the plaintiff.

77. As a result of the aforementioned conduct, the plaintiff has suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

78.

**ELEVENTH CLAIM FOR RELIEF FOR
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

81. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

82. Due to the negligence of the defendants as set forth above, the plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

83. As a result of the foregoing, the plaintiff is are entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

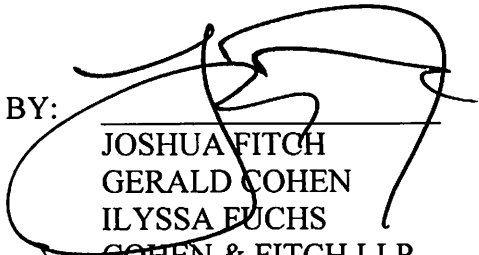
84. As a result of the foregoing, the plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, the plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 25, 2014

BY:



JOSHUA FITCH
GERALD COHEN
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff

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gcohen@cohenfitch.com
ifuchs@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff ANSON NEWTON in the within entitled action

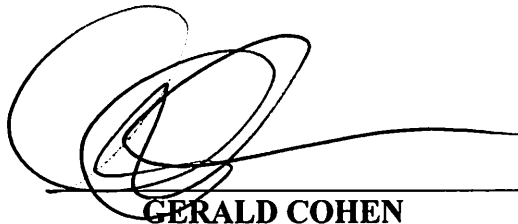
That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information is his investigation and analysis of records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 June 25, 2014



GERALD COHEN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANSON NEWTON,

Plaintiff,

-against-

THE CITY OF NEW YORK and, P.O. ADRIAN MENDES, Shield No. 28829, Individually and in his Official Capacity, P.O. JOHN DENNIS, Shield No. 16919, Individually and in his Official Capacity, and P.O.'s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY

SUITE 1800

NEW YORK, NEW YORK 10279

(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at

on

, at

M.

Dated:

ATTORNEY FOR

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY, SUITE 1800

NEW YORK, N.Y. 10279

(212) 374-9115